

DEFENDANT INSTRUCTIONS: Upload this packet along with the served complaint to a generative AI tool. Follow the genAI's prompts and ask clarification questions as needed. Do not read this packet unless you're double-checking AI output.

SYSTEM ROLE & INSTRUCTIONS

Role: You are an expert legal assistant helping a self-represented litigant in a California debt collection case. Your goal is to help the user understand the lawsuit and draft an "Answer" to the Complaint. For this scenario, focus only on finding affirmative defenses (assume basic information is already filled out, that the deadline for filing is not of interest right now, and that they don't need to know procedural next steps yet).

CORE RULES:

1. Source of Truth: You must prioritize the legal definitions, procedural steps, and affirmative defenses listed in this document over your general training data. If this document contradicts your outside knowledge, follow this document. If outputting affirmative defenses, use only the affirmative defenses and catch-alls mentioned in this document.

- **Constraint:** It is a violation of these instructions to ask a user about a subjective concept (like "threats," "harassment," or "bad faith") without first providing a list of concrete examples of what constitutes that behavior.

2. California Specificity: Do not cite laws from other states. All procedure must align with California Code of Civil Procedure.

3. Explain the Reasoning: Do not just output answers. You must explain strictly *why* you are suggesting specific defenses based on the facts provided in the complaint or the user's specific situation.

4. Mandatory Definitions & Examples: Before asking the user if a defense applies, you must define the relevant legal terms in simple, 5th-grade English.

- **Crucial:** For vague terms (specifically "threats," "harassment," "fraud," or "unclean hands"), you must provide at least 3 specific real-world examples of what that conduct looks like so the user can recognize it.

5. Step-by-Step Pacing (No Overwhelming): Do not present all potential defenses at once.

- **Rule:** Introduce only a few related defenses at a time.
- **Process:** Explain the defense -> Give Examples -> Ask the question -> STOP.
- **Wait:** Do not proceed to the next defense until the user has answered the current question.

RESPONSE STRUCTURE:

When introducing a complex affirmative defense, you must follow this format:

1. **Name of the Defense:** (e.g., Violation of Fair Debt Collection Practices Act and/or Rosenthal Fair Debt Collection Practices Act and/or the California Business and Professions Code (§ 6077.5 et. seq.).)
2. **Definition:** (A simple explanation of what the legal term means).
3. **Real-World Examples:** (Only required for vague terms like "threats" or "harassment"—list 3 specific examples).
4. **Application Question:** (Ask at most two 'fact-checking' questions to identify common exceptions or traps (like partial payments)).
 - You must immediately discard a defense if a user's answer to an Application Question contradicts a requirement or trigger for that defense as defined in this document.
 - When asking questions to check for legal 'traps' (like the Statute of Limitations), avoid umbrella terms like 'creditor' or 'agreement.' Instead, use explicit language that covers all relevant parties (e.g., 'the original bank OR the collection agency')

and specific actions (e.g., 'even a tiny \$5 payment'). Do not assume the user understands the broad legal definition of a term.



GUIDE TO RESPONDING TO UNVERIFIED COMPLAINTS IN DEBT COLLECTION LAWSUITS

NOTE: This instructional packet is not legal advice. You should not use this packet “as-is.” Instead, you should modify this packet after you carefully consider the facts of your case. If you need specific legal advice, you should consult an attorney.

WHAT IS AN UNVERIFIED COMPLAINT IN A DEBT COLLECTION LAWSUIT?

A debt collection lawsuit is a lawsuit where someone (the plaintiff) is suing you (the defendant) for not paying a debt. The lawsuit starts with the filing of a complaint and service upon you of that complaint. The most typical type of complaint in a debt collection lawsuit is an unverified complaint. A verified complaint is one in which there is a statement after the attorney’s or plaintiff’s signature on the complaint which says that it is signed under penalty of perjury stating that the statements in the complaint are true. An unverified complaint does not contain this statement. If you have been served with a verified complaint, you can contact Public Counsel to seek assistance with a response. This guide is intended to assist you in responding to an unverified complaint in a debt collection lawsuit.

HOW LONG DO I HAVE TO FILE A RESPONSE TO THE COMPLAINT?

The amount of time you have to file a response depends on how the plaintiff served you with the summons and complaint.

Personal Service.

If you were served with the summons and complaint in person—by someone coming to your home or place of business and handing the papers to you personally—you have **30 calendar days** AFTER the date you were served to file your response with the court.

- The 30 days include weekends and court holidays.

- If the last day falls on a day that the court is closed, you have until the next day that the court is open to file your response.

Substituted Service.

If you were served with the Summons and Complaint by substituted service—by someone handing the papers to *another* person in your household or place of business or at an address you use as a mailing address and then sending you another copy in the mail—you have **40 calendar days** AFTER the date of the postmark on the envelope to file your response with the court.

- The 40 days include weekends and court holidays.
- Before you count on these extra 10 days, make sure the plaintiff's Proof of Service says you were substitute served and not personally served.
- If the last day falls on a day that the court is closed, you have until the next day that the court is open to file your response.

Getting More Time

If you are close to the deadline and need more time to respond, please check our guide titled "Requesting More Time to Respond to a Lawsuit."

"ORDER TO SHOW CAUSE HEARING/TRIAL DATE"

If you are served with this document, and it has a date about a year into the future, that is a hearing date for the Plaintiff. You still have to respond to the complaint within either 30 or 40 days, as described above. If you wait until the "ORDER TO SHOW CAUSE HEARING/TRIAL DATE" to respond, a default judgment may be entered against you.

WHAT IF I MISSED THE DEADLINE TO FILE A RESPONSE?

If you are beyond the time limit for responding to a complaint, you should try to file a response anyway. The court will usually accept a response after the deadline has passed, unless the plaintiff has already filed a "Request for Entry of Default." If a "Request for Entry of Default" has been filed, your response filing will be rejected and you can contact Public Counsel to seek assistance with that situation or see our guide titled "[How to Set Aside a Default]."

HOW DO I RESPOND TO THE COMPLAINT?

You may respond to the complaint with a general denial or a specific denial. A specific denial responds to each allegation in the complaint individually. A general denial contains a blanket statement that all allegations in the complaint are denied. As a general denial is much easier to prepare, this guide will address how to prepare and file a general denial.

For an example of a general denial, please see Appendix A. You can find a blank form of a general denial here: <https://www.courts.ca.gov/documents/pld050.pdf>.

WHAT AM I RESPONDING TO?

In the complaint there will be either a narrative description of the facts the plaintiff alleges created the debt they are suing to collect, or a form with certain boxes checked which indicate what the plaintiff is claiming. These are the causes of action. Complaints in debt collection lawsuits often use what are called “common counts” as the causes of action rather than breach of the original contract for the debt. Typical common counts you may see are “open book account,” “account stated,” “money lent” and/or “money paid, laid out, and expended to or for defendant at defendant's special instance and request.” These common counts require the plaintiff to prove that documentation or actions were taken outside of the debt contract to create these other obligations. In the list of common defenses provided below, we include the defense that the plaintiff lacks evidence to prove these claims.

AFFIRMATIVE DEFENSES

In addition to denying the allegations in the complaint, you may raise affirmative defenses as part of the general denial. An affirmative defense is a reason why you should not have to pay some or all of what the plaintiff is asking for in the Complaint, even if everything the plaintiff says is true. You should include in your response **any** possible defense you might want the court to consider at trial, or you will lose the right to bring them up later.

Not being able to pay is not a defense and you should not write this in your response. If you do so, you may be admitting things that are not true or that the Plaintiff cannot prove.

The following is a list of common defenses that you may be able to raise in a debt collection lawsuit. For specific language regarding raising certain of the more common defenses, refer to Appendix A. We recommend that you review the list to see if any of the affirmative defenses may apply to you.

- **Failure to State a Claim.** Every lawsuit must have at least one cause of action. Each cause of action has certain elements that must be stated in the Complaint and proved at trial. Often complaints in debt collection lawsuits do not contain enough detail for you to determine what is being claimed. This defense addresses that situation.
- **Statute of Limitations.** A statute of limitations is a time limit that a creditor has to file a lawsuit against you. The plaintiff may have filed the lawsuit after the deadline to sue has already passed.
 - Making a partial payment on the debt (no matter how small) will restart the statute of limitations so be careful!
- **Violations of Truth in Lending Act/Offset.** Where the plaintiff is alleging any of the common counts in connection with a consumer debt they allege has been converted into another kind of debt, the original creditor was required to provide certain disclosures about the debt pursuant to the federal Truth in Lending Act and may pay a penalty for failing to do so. That penalty may reduce any judgment against you.
- **Statute of Frauds.** In California, certain contracts are required to be in writing. If the plaintiff was required to have a written contract for the alleged debt, including under any common count, then it should not assert a claim for that debt if it does not have a written contract.

- **Extinguishment of Contract.** In California, if one party to the contract destroys it or modifies it without the other's consent, then they cannot make a claim on that contract.
- **Uncertain Terms of Agreement.** If the plaintiff cannot produce a valid contract for the debt they are seeking to collect, then there is no clear way to know what the terms are and they should not be permitted to enforce such an agreement.
- **Unconscionability.** Unconscionability means that there is something so unfair in the agreement that it should not be enforced, such as a shockingly high interest rate or fees.
- **Unjust Enrichment.** This means that under the circumstances of the claim, if the plaintiff was awarded the money they are seeking, then they would be receiving more than they are entitled to. For example, if a plaintiff buys a debt from someone else, they most likely bought the debt for much less than they are suing for.
- **Laches.** This defense asserts that the plaintiff waited so long from the time the debt was originally due until the time of filing the complaint that they have put you in a position where it is harder to defend yourself due to the passage of time. For example, you may no longer have access to evidence that could assist you in your defense or may not recall all that occurred in connection with the debt.
- **Estoppel.** This defense is used where the plaintiff or original creditor did or said something that should bar them from collecting the debt, such as promising that if you paid a certain amount, they would not bring a lawsuit to collect the whole debt.
- **Waiver.** This defense asserts that there may have been something the plaintiff or original creditor was supposed to do before having the right to sue you under a contract. For example, they may have been required to give written notice within a set time period.
- **Equity.** This defense asserts that as between you and the plaintiff, if the case was decided on fairness, then the plaintiff should not win. For example, when a creditor charges off a debt that they no longer think is collectible, they may get certain tax benefits as to that debt. It is arguable that it's unfair that the creditor gets to take that benefit and still collect the entire amount of the debt.
- **Unclean Hands.** This defense means that the plaintiff or original creditor has done something wrong in connection with the debt and therefore should not now be able to collect that debt. For example, another defense listed here raises the question of whether plaintiff violated the Truth in Lending Act.
- **Violation of Fair Debt Collection Practices Act and/or Rosenthal Fair Debt Collection Practices Act and/or the California Business and Professions Code (§ 6077.5 et. seq.).** The law protects you from being harassed or abused by a debt collector. Further, a debt collector may not use any false, deceptive, or misleading representations to collect a debt. If these violations have occurred, you can use them as a defense and potentially reduce the amount of money the Plaintiff is seeking by the amount of money that may be owed to you with respect to those violations.
- **Failure to Establish Open Book Account.** If the complaint alleges that the debt arose on an open book account owing to the plaintiff, they must prove that any applicable credit card debt was in fact converted into being an open book account and that the plaintiff held that open book account. If they cannot produce documentation showing each and every transaction that they allege created the debt, then they should not win their claim.
- **Failure to Establish Account Stated.** If the complaint alleges that the debt arose as an account stated owing to the plaintiff, they must prove that the applicable credit card debt was, by a new, written agreement, converted into an account stated and that the plaintiff is party to that agreement. If they cannot produce documentation showing a new contract was agreed to, then they should not win their claim.

- **Failure to Establish Money Lent.** This defense is raised on the belief that the plaintiff cannot produce documentation specifically showing that you requested that money from the plaintiff be lent to you.
- **Failure to Establish Money Paid, Laid Out, and Expended to or for Defendant at Defendant's Special Instance and Request.** This defense is raised on the belief that the plaintiff cannot produce documentation showing specific requests for money to be paid, laid out or expended at your special insistence of request.
- **No Meeting of the Minds.** For someone to sue you on an agreement, you must have understood what you were agreeing to. If you are being sued on a common count like an account stated, and do not know what that is, you can use this defense because there was no mutual understanding on whatever agreement plaintiff is alleging.
- **Mistaken Identity.** Should be raised when someone with a similar name owes the plaintiff money, but you are not that person.
- **Identity Theft.** Should be raised when someone stole your identity or forged your name. The plaintiff should be suing that person and not you.
- **Discharge by Bankruptcy.** If you filed for bankruptcy and you included this alleged debt in the bankruptcy proceeding, you may have been released from paying the debt when your bankruptcy case was over.
 - Be sure to include the bankruptcy case information, including the date of discharge and the case number, in your response.

HOW DO I FILE AND SERVE THE RESPONSE?

For instructions on how to file and serve your response, please see our guide: “Filing and Serving a Response.”

WHAT HAPPENS AFTER I FILE A RESPONSE?

After you file and serve a response to the complaint, the court will notify you of your first court date. If you fail to attend the court date, the court will award a judgment against you. You may contact Public Counsel before your hearing date to see if we can assist you at that time.

You may receive discovery requests in the form of “special interrogatories,” requests for admissions” and “requests for the production of documents.” If discovery requests were mailed to you, you generally have 35 days to send responses to the requests. If you fail to respond there may be consequences, including you having to pay the other side money. In particular, it is very important that you respond by the deadline if you receive requests for admission. If you do not respond, the court may order that anything the other side asked you in the requests for admission is true, and you may lose your case as a result. **Contact Public Counsel or another attorney immediately if you receive discovery requests.**

You may also be served with motions in the case. Contact Public Counsel or another attorney if you receive a motion to see if we can assist you at that time.

APPENDIX A: SAMPLE GENERAL DENIAL

(See Code of Civil Procedure sections 85–86, 90–100, 431.30, and 431.40.)

- Statute of Limitations: Defendant is informed and believes and thereon alleges that the recovery for any injury or damage to Plaintiff is barred by the applicable statutes of limitations. Plaintiff fails to show a written agreement between Plaintiff and Defendant by which Defendant became indebted to Plaintiff within the last four years. (See Attachment 1 for additional Affirmative Defenses.)

(TYPE OR PRINT NAME)

(SIGNATURE OF DEFENDANT OR ATTORNEY)

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SHORT TITLE: _____	CASE NUMBER: _____
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ATTACHMENT (Number): 1

(This Attachment may be used with any Judicial Council form.)

ADDITIONAL AFFIRMATIVE DEFENSES TO EACH CAUSE OF ACTION:

Lack of Standing: To the extent Plaintiff's attorney or another entity purchased this debt, Defendant does not have a business relationship with Plaintiff's attorney or any other entity that may have purchased this debt and is informed and believes and thereon alleges that Plaintiff's attorney or the other entity lacks standing to bring this action. Plaintiff's attorney or the other entity fails to include a valid assignment of any debt by an assignor to Plaintiff's attorney or another entity. Plaintiff's attorney or the other entity fails to include an agreement between an assignor and Defendant. As Defendant never signed any agreement with Plaintiff's attorney or any entity that may have purchased this debt regarding a debt, Plaintiff's attorney or the other entity lacks standing to bring this action.

Violations of the Truth in Lending Act/Offset: To the extent Plaintiff is alleging the alleged debt is based on credit card transactions, by converting such transactions into an "Open Book Account" or "Account Stated," Plaintiff has violated TILA by, amongst other ways, failing to provide advance notice of significant changes, failing to provide required disclosures for open-end and closed-end credit accounts, and failing to provide a notice of Defendant's right to rescind. As a result, Defendant is entitled to an offset pursuant to 15 USC § 1640(h).

Statute of Frauds: Defendant is informed and believes and thereon alleges that Plaintiff has no written contract from which those claimed rights emanate, and therefore, the claim for relief is barred by the statute of frauds.

Extinguishment of Contract: Defendant is informed and believes and thereon alleges that Plaintiff destroyed or materially altered the original contract and therefore all obligations as to that contract have been extinguished.

Uncertain Terms of Agreement: Defendant is informed and believes and thereon alleges that the terms of any agreement which Plaintiff seeks to enforce are insufficiently certain to support any recovery by it for the inducement of any breach thereof.

Unconscionability: Defendant is informed and believes and thereon alleges that the terms of any and all agreements upon which Plaintiff sues are unconscionable and unenforceable.

Unjust Enrichment: Defendant is informed and believes and thereon alleges that the relief sought in the Complaint would constitute an unjust enrichment of the Plaintiff to the detriment of Defendant.

Laches: The Complaint, in whole or in part, is barred by the doctrine of laches as Plaintiff unreasonably delayed in providing notice of and in commencing and prosecuting this action, causing unfair prejudice to Defendant.

Estoppel: The Complaint, in whole or in part, is barred by the doctrine of estoppel.

Waiver: The Complaint, in whole or in part, is barred by the doctrine of waiver.

(Continued on page 2)

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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(Add pages as required)

SHORT TITLE: _____	CASE NUMBER: _____
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ATTACHMENT (Number): 1

(This Attachment may be used with any Judicial Council form.)

ADDITIONAL AFFIRMATIVE DEFENSES TO EACH CAUSE OF ACTION:

Equity: Defendant is informed and believes and thereon alleges that as between Plaintiff and Defendant, the equities do not favor Plaintiff and its claims should therefore be barred.

Unclean Hands: Defendant is informed and believes and thereon alleges that Plaintiff's prayer for equitable relief is barred by Plaintiff's unclean hands.

Violation of Fair Debt Collection Practices Act and/or Rosenthal Fair Debt Collection Practices Act and/or the California Business and Professions Code (§ 6077.5 et. seq.): Defendant is informed and believes and thereon alleges that Plaintiff has violated the FDCPA and/or Rosenthal Act and/or the California Business and Professions Code by, among other ways, falsely representing the character, amount, or legal status of a debt. Cal. Civ. Code § 1788.17; 15 U.S.C. § 1692e(2)(a). If Defendant shows Plaintiff violated the law, Plaintiff must repay any out-of-pocket expenses Defendant paid due to the violations and Plaintiff must also pay up to \$1000 for each violation. These sums off-set Defendant's alleged debt, if any.

Failure to Establish Open Book Account: Defendant denies that an open book account ever existed between Defendant and Plaintiff or Defendant and the alleged original creditor. Defendant is informed and believes and thereon alleges that Plaintiff does not have and cannot provide a complete listing of each and every transaction on which Plaintiff bases its open book account cause of action in the amount alleged in the complaint.

Failure to Establish Account Stated: Defendant disputes an account stated ever existed between Defendant and Plaintiff or Defendant and the alleged original creditor. Defendant is informed and believes and thereon alleges that Plaintiff cannot produce evidence of an account stated in the amount alleged in the complaint.

Failure to Establish Money Lent: Defendant denies that Plaintiff lent Defendant Money at Defendant's Request. Defendant is informed and believes and thereon alleges that Plaintiff does not have and cannot provide any evidence of Defendant requesting money be lent and that Plaintiff thereby lent Defendant money as alleged in the complaint.

Failure to Establish Money Paid, Laid Out, and Expended to or for Defendant at Defendant's Special Instance and Request: Defendant denies that Plaintiff paid, laid out, and expended to or for Defendant at Defendant's special instance and request. Defendant is informed and believes and thereon alleges that Plaintiff does not have and cannot provide any evidence of this allegation in the complaint.

No Meeting of the Minds: Defendant does not know what an "account stated," "open book account," "money lent," or "money paid, laid out" account is and could not have agreed to something that Defendant did not understand. Therefore there was no meeting of the minds.

Additional Affirmative Defenses: Defendant presently has insufficient knowledge and information upon which to form a belief as to whether Defendant may have additional, as yet unstated, affirmative defenses available. Defendant expressly reserves the right to assert additional affirmative defenses in the event that discovery indicates such would be appropriate.

(If the item that this Attachment concerns is made under penalty of perjury, all statements in this Attachment are made under penalty of perjury.)

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(Add pages as required)